Project 1 Report: Week 5

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LGST 312: Torts

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**TO:** Partner Lincoln, Esq.

**FROM:** Victoria Lee, Legal Assistant

**RE:** Ms. Smith Negligence Claim: Analysis of the Last Clear Chance Doctrine

**DATE:** 4/9/2025

**Facts**

Ms. Smith was driving on a winding local road in Columbia, Maryland, heading to her sister's house, where the speed limit on the road was 30 mph due to its geographic location surrounded by rolling hills and pastures. While driving, Ms. Smith was distracted by the scenery and failed to notice that her car had drifted partially into the median strip of the wrong lane. At the same time, Mr. Klink, driving in the opposite direction at a speed of 55 mph, noticed Ms. Smith's car drifting into his lane. When Ms. Smith noticed Mr. Klink's car, it was estimated that it was approximately 50 yards away, but Mr. Klink estimated that it was approximately 100 yards away and stayed in his lane, hoping she would return to her side of the road. However, Ms. Smith did not, and the vehicles collided shortly thereafter. As a result of the crash, Ms. Smith suffered significant injuries, including a broken arm and back injuries, as well as $14,000 in car damage, $47,000 in medical bills, and lost $22,000 in income from not being able to continue working for two months. In contrast, Mr. Klink had $1,500 in minor damage to his vehicle and was cited for speeding at the scene. Ms. Smith has filed a negligence claim, alleging that Mr. Klink's excessive speed caused the accident, and Mr. Klink's attorney has raised the defense of contributory negligence, arguing that Ms. Smith's failure to maintain her lane of travel was the primary cause of the crash.

**Issue**

The issue is whether the *Last Clear Chance Doctrine* can be applied to overcome the contributory negligence defense raised by Mr. Klink, whether Ms. Smith is allowed to recover damages despite her own contributory negligence, considering Mr. Klink had a "*last clear chance*" opportunity to avoid the collision after noticing Ms. Smith in his lane, and whether Ms. Smith is time-barred from pursuing a complaint against Mr. Klink by the Maryland statute of limitations.

**Rule**

Under *Wooldridge v. Price*, 184 Md. App. 451, 462 (2009), the Maryland Court of Special Appeals breaks down the *Last Clear Chance Doctrine*, where it allows a contributory negligent plaintiff to recover damages if the defendant had the last clear opportunity to avoid the accident but failed to do so and the following conditions are met based on West's Ann. Md. Code, Transportation §§ 11–114, 11–115, 21–404 (West, Westlaw through the 2024 Regular Session of the General Assembly): (1) the defendant is negligent; (2) the plaintiff is contributorily negligent; (3) the defendant had a fresh opportunity to avoid the harm after the plaintiff's negligence set the events in motion, and the defendant failed to take advantage of that opportunity such as the defendant having a "last clear chance" opportunity to avoid the accident; and (4) the scope of the parties' actions based on different types of vehicles and traffic regulations, where "vehicle" is any device in, upon, or by which any person or property is or may be transported or drawn on a highway. In Maryland, contributory negligence is a complete bar to recovery and serves as a strong defense for defendants such as Mr. Klink. However, the *Last Clear Chance Doctrine* provides a narrow exception to this rule. Meanwhile, under Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular

Session of the General Assembly), a civil action in Maryland at law shall be filed within three years from the date it accrues unless another provision of the Code provides a different period within which an action shall be commenced.

**Application/Analysis:**

Here, both parties were negligent since Ms. Smith was distracted by the landscape and did not notice that she drifted into Mr. Klink's lane, and Mr. Klink was speeding at 55 mph on a road with a 30 mph speed limit, noticing Ms. Smith's encroachment into his lane 100 yards ahead, but stayed in his lane and did not avoid the collision. Since Ms. Smith failed to maintain her lane due to distraction, Mr. Klink can raise contributory negligence as a strong defense, which would ordinarily bar her claim under Maryland law. However, the key issue is whether Mr. Klink had a last clear chance to avoid the collision despite Ms. Smith's initial negligence. Based on the facts, it suggests that while Ms. Smith was contributory negligent, like drifting into Mr. Klink's lane, the *Last Clear Chance Doctrine* is still applicable if Mr. Klink had a fresh opportunity to avoid the collision after noticing her in his lane.

Firstly, there is Mr. Klink's negligence, since he sped on the highway, which constitutes negligence under the case law and statutes. Mr. Klink's decision to drive at 55 mph on a winding, 30 mph road was a clear breach of the duty of care owed to other drivers since the area required extra caution due to the winds. Moreover, his failure to avoid the collision, once he recognized that Ms. Smith's car was drifting into his lane, was one of the negligence. Through the West's Ann. Md. Code, Transportation § 21–404 (West, Westlaw through the 2024 Regular Session of the General Assembly), it supports this claim where he didn't yield the right of way and avoid causing harm by speeding, which constitutes negligence under these circumstances.

Secondly, since Ms. Smith has failed to notice her drift into the wrong lane, going into Mr. Klink's lane of traffic, and her distraction with the scenery, it constitutes as a contributory negligence because the Maryland courts held that contributory negligence on the plaintiff's part bars recovery against a defendant unless an exception like the *Last Clear Chance Doctrine* applies.

Thirdly, this element will analyze if Mr. Klink had a *Last Clear Chance Doctrine* to avoid the accident with Ms. Smith. Based on the facts, since Mr. Klink saw Ms. Smith's car drifting into his lane when it was approximately 100 yards away, he decided to remain in his lane, hoping she would correct her position, where the collision occurred shortly after he observed the danger. This is crucial to determine whether Mr. Klink had enough time to take action and avoid the crash. In *Wooldridge v. Price*, 184 Md. App. 451, 462 (2009), the court emphasized that Mr. Klink must have had a fresh opportunity to avoid the collision after Ms. Smith's negligence put her in a position of peril. Specifically, Mr. Klink did observe Ms. Smith's car in his lane even though he was speeding where his reaction time is limited, and it can be argued that he had sufficient time and space to take evasive action. Through the West's Ann. Md. Code, Transportation § 21–404 (West, Westlaw through the 2024 Regular Session of the General Assembly), a driver has a duty to act to avoid an accident when another vehicle is in a dangerous position. Given that Mr. Klink had time to react and choose an alternative, such as slowing down or swerving, his failure to do so suggests that he did not take the necessary precautions, which invokes the *Last Clear Chance Doctrine*. Based on the facts, the actions in this case were sequential, not concurrent, which is crucial for the *Last Clear Chance Doctrine* to apply, where the defendant must have had an opportunity to avoid the collision after the plaintiff's negligence was already in motion. Since Ms. Smith drifted into Mr. Klink's Lane, Mr. Klink had the

opportunity to avoid the crash but failed to do so. And unlike *Wooldridge v. Price*, 184 Md. App. 451 (2009), where the plaintiff's negligence occurred at the same time as the defendant's negligence, in this case, Mr. Klink had the opportunity to avoid the accident after Ms. Smith's initial negligent act of drifting. Mr. Klink's failure to take any action could be viewed as his failure to exercise reasonable care under the circumstances.

Fourthly, based on the scope of the parties' actions on the types of vehicles involved and relevant traffic regulations, Ms. Smith and Mr. Klink were operating motor vehicles on a highway, where all traffic rules like speed limits, lane usage, and right-of-way are accounted for in the scope's examination. In *Wooldridge v. Price*, 184 Md. App. 451, 458-465 (2009), the courts held that any driver must comply with the traffic regulations of the highway. In this case, both parties failed to comply with the traffic regulations, such as Ms. Smith's failure to maintain her lane is a violation of her duty of care, and Mr. Klink's speeding is a violation of traffic laws. These actions are important as it is also considered for the third element based on the *Last Clear Chance Doctrine*.

Furthermore, since Ms. Smith's failure to maintain her lane due to distraction, Mr. Klink can raise contributory negligence as a strong defense, which would ordinarily bar her claim under Maryland law. However, the key issue is whether Mr. Klink had a last clear chance to avoid the collision despite Ms. Smith's initial negligence. Through the Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular Session of the General Assembly), it allows her to file her claim within three years of the event, which is completed by the fact that she filed this report after the accident, meeting the requirements.

**Conclusion**

In conclusion, *Wooldridge v. Price*, 184 Md. App. 451, 454-465 (2009) and West's Ann. Md. Code, Transportation §§ 11–114, 11–115, 21–404 (West, Westlaw through the 2024 Regular Session of the General Assembly), makes it arguable that the *Last Clear Chance Doctrine* applies to Ms. Smith's case, allowing her to recover damages despite her contributory negligence. Even though Ms. Smith's negligence contributed to the accident, Mr. Klink was speeding on the highway and had the "last clear chance" opportunity to avoid the collision after seeing Ms. Smith's car in his lane and failed to take appropriate action to prevent the collision, which may allow Ms. Smith to recover damages despite her contributory negligence. Therefore, the court may find that Mr. Klink had the "last clear chance" opportunity to avoid harm, and Ms. Smith could be entitled to recover damages. Therefore, while Mr. Klink's strongest defense is contributory negligence, which, under Maryland law, generally bars a plaintiff from recovering damages, the court may nevertheless find that the *Last Clear Chance Doctrine* applies, since Mr. Klink had the "last clear chance" opportunity to avoid harm, allowing Ms. Smith to recover as she filed the action within the three-year statute of limitations under Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular Session of the General Assembly) despite her negligence.

## References

*Advanced Business Law and the Legal Environment: Chapter 5: Administrative Law*. (2014). Washington, D.C.: The Saylor Foundation. https://leocontent.umgc.edu/content/dam/equella-content/lgst340/Chapter%205%20-%20Administrative%20Law.pdf?ou=1254835

*Advanced Business Law and the Legal Environment: Chapter 7: Tort Laws*. (2012). Washington, D.C.: The Saylor Foundation. https://saylordotorg.github.io/text_government-regulation-and-the-legal-environment-of-business/s10-introduction-to-tort-law.html

Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular Session of the General Assembly)

West's Ann. Md. Code, Transportation § 11–114 (West, Westlaw through the 2024 Regular Session of the General Assembly)

West's Ann. Md. Code, Transportation § 11–115 (West, Westlaw through the 2024 Regular Session of the General Assembly)

West's Ann. Md. Code, Transportation § 21–404 (West, Westlaw through the 2024 Regular Session of the General Assembly)

West's Ann. Md. Code, Transportation §§ 11–114, 11–115, 21–404 (West, Westlaw through the 2024 Regular Session of the General Assembly)

*Wooldridge v. Price*, 184 Md. App. 451 (2009)

*Wooldridge v. Price*, 184 Md. App. 451 (Ct. Spec. App., 2009)